



DEPARTMENT OF DEFENSE WASHINGTON HEADQUARTERS SERVICES
1155 DEFENSE PENTAGON
WASHINGTON, DC 20301-1155



February 4, 2025

Control No. 2025-1575-JA

**JUSTIFICATION FOR EXCEPTION TO FAIR OPPORTUNITY (JEFO) UNDER FEDERAL
ACQUISITION REGULATION SUBPART 16.5**

- 1. AGENCY AND CONTRACTING ACTIVITY:** The Department of Defense (DoD), Washington Headquarters Services, Acquisition Directorate, Enterprise Office of the Secretary (WHS/AD/EOSD) is the contracting activity for the requiring agency Defense POW/MIA Accounting Agency (DPAA).
- 2. DESCRIPTION OF ACTION:** This action requests the approval of a Justification for cellular voice and data equipment and services, to support DPAA's mission to provide the fullest possible accounting of personnel missing from our nation's past conflicts. The users of services being requested are located in Hawaii, Nebraska, Ohio, and Virginia however, DPAA's mission requires its personnel to continually perform international travel to countries and remote locations throughout the world. The DPAA COR has evaluated the international and domestic coverage maps published by the MAS and has found all vendors advertised coverage to be technically acceptable. DPAA requires smartphones and tablets compliant with DISA Unclassified Mobility Capability (DMUC) as mobile access to Defense Enterprise Email (DEE) is a critical capability. DPAA currently uses iPhones that are compliant with DMUC standards for supportability. DPAA requires a mobilization/transition plan and onsite vendor support during the transition. All existing DPAA mobile numbers shall be ported should an award be made to a carrier other than the incumbent (Verizon)
- 3. DESCRIPTION OF SUPPLIES/SERVICES:** WHS/AD proposes to issue a Firm Fixed Price (FFP) contract utilizing Fiscal Year (FY) 2025 Operations and Maintenance (O&M) funds under PR# TBD. The anticipated period of performance is for a 12-months Base Period and (4) four 12-month Option Periods. The cellular voice and data equipment and services will be sole source to Cellco Partnership DBA Verizon Wireless in accordance with the DoD Chief Management Officer Memorandum, "DoD UNCLASSIFIED Wireless Mobile Services and Devices Spiral 4" May 23, 2024 mandate
- 4. Period of Performance**

Performance Periods	Performance Period Dates	Amount
Base Period	15 March 2025- 14 March 2026	
Option Period I	15 March 2025- 14 March 2026	
Option Period II	15 March 2025- 14 March 2026	
Option Period III	15 March 2025- 14 March 2026	
Option Period IV	15 March 2025- 14 March 2026	
Base + All Options		

NAICS: 517112 – Wireless Telecommunications Carriers (except Satellite)
PSC: DG11 - IT and Telecom - Network: Satellite Communications and Telecom Access Services

5. Statement of Requirements:

"A" ELINs	
Services Only (short term requirements 1 year or less; no tech refresh; no guarantee current device is compatible with other carriers)	
Quantity	Device

0	Smartphones (<i>specify type of device</i>)
0	Voice/Text only phones
0	HotSpot/Data Card devices
0	Tablets

“B” ELINs	
Services with Devices (<i>new “zero cost” device and tech refresh at 36 or 48 months</i>)	
Quantity	Device
187	Smartphones (<i>specify type of device</i>)
0	Voice/Text only phones
10	HotSpot/Data Card devices
0	Tablets (<i>Specify type of tablet(s):</i>)

“D” ELINs	
Other Service & Equipment	
Quantity	Type
80	International Service
0	HotSpot/Data Card devices
0	Tablets
0	Device Accessories
0	Task Order Early Termination Fee

6. **EXCEPTION TO THE FAIR OPPORTUNITY:** In accordance with FAR 16.505(b)(2)(i)(B) which permit limiting competition when only one source is capable of providing the required supplies or services due to their unique or highly specialized nature” and DFARS 216.505-70(b)(2), for orders exceeding \$250,000,

Verizon Communications INC is the incumbent contractor who is the sole wireless network provider for 300 CONUS/OCONUS based DPAA personnel who use wireless devices to complete their mission and daily tasks. Currently there are 197 mobile devices actively in use by DPAA executives, anthropologists, team leaders and other agency employees who require reliable wireless network access for efficient, effective and safe completion of their mission and daily assignments. Awarding a new contract to a competitor at this time would require new devices, phone numbers and porting existing user profiles to the new network which would disrupt current service presenting an unacceptable risk to personnel and mission accomplishment by isolating and endangering more than 70 personnel deployed individually or as part of a team who operate in remote regions worldwide on at any time, 365 days a year.

Transition to a new wireless provider presents significant challenges operationally and logistically to DPAA as the agency has three CONUS and OCONUS locations. Agency personnel deploy to remote regions worldwide, transition possess an unacceptable risk to deployed teams, potentially leading to loss of wireless capabilities affecting the safety of team members. In addition, transfer of 197 devices to a different network further adds to the possibility of technical issues such as compatibility which can directly impact day to day capability of DPAA to complete its mission.

Only Verizon Communications INC. can provide the supplies or services with required reliability, availability with minimal impact to DPAA operations in areas required to meet the global mission needs of DPAA at the most technically acceptable cost.

This is a follow-on order to the current procurement effective March 2024 with POP dates of 15 MAR 2024 to 14 MAR 2025, under the SPIRAL 3 IDIQ (N0024418D0003 with Verizon Communications INC). Based on available market research the incumbent provider offers the most cost-effective option to the government. Transition to the nearest competitor would increase monthly recurring costs by \$2,000.00 and additionally cost a minimum of 6,000 hours in manpower to transition devices to a new network. The requirement for wireless service has been on going and increasing over the previous 10 years, transition to a new provider will adversely impact more than 180 users forcing them to learn the new vendor’s procedures impacting the efficiency in completing daily tasks.

7. **FAIR AND REASONABLE COST DETERMINATION:** The anticipated price for this order will be fair and reasonable. Price will be evaluated based on the techniques identified at FAR 15.404-1(b) *Price Analysis*, to determine if the proposed price is fair and reasonable. The Quoter shall provide firm-fixed prices in response to the Government's solicitation which will be posted in PIEE. The Government will compare the vendor's quote to NAVSUP Spiral 4 competitive published price lists. Certified cost and pricing data is not required for this action.
8. **ANY OTHER FACTS SUPPORTING THE JUSTIFICATION:** N/A
9. **ACTIONS TO REMOVE OR OVERCOME ANY BARRIERS THAT OVERCOME ANY BARRIERS THAT LEAD TO THE EXCEPTION TO FAIR OPPORTUNITY BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES IS MADE:** For future requirements of this nature, DPAA will review other commercially available cellular voice and data equipment and services as technology in this sector is rapidly advancing. The Government will consider alternative products if market research supports the fact that alternate cellular voice and data equipment and services provide additional benefits to the Government.
10. If this acquisition is for new work as a logical follow-on to an order already issued under the contract, was the original order was placed under the fair opportunity process?
- ☐ Yes, all awardees were given a fair opportunity to be considered for the original order.
- ☒ No, a copy of the previous justification is attached. The actions to remove any barriers to competition cited on the previous justification ☐ were ☐ were not completed.
- Not Applicable. This is a new requirement.

CERTIFICATION

I, hereby, certify that the supporting data under my cognizance included in this justification are accurate and complete to the best of my knowledge and belief.

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Contracting Officer Representative/Program Office Date

APPROVAL

I, hereby, certify that the supporting data under my cognizance included in this justification are accurate and complete to the best of my knowledge and belief.

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Contracting Officer

Date